

**SUPREME COURT OF PAKISTAN**

(Appellate Jurisdiction)

**Present:**

Justice Yahya Afridi, CJ  
Justice Shakeel Ahmad

**Civil Petitions No. 1054-K & 1055-K of 2023**

*(Against the order dated 06.06.2023, passed by the High Court of Sindh at Karachi in CPs No. S-911 and S-912 of 2002)*

Muhammad Ramzan (deceased) thr. LRs ...Petitioners  
& another (*in C.P.1054-K/2023*)

Faquir Muhammad & another  
(*in C.P.1055-K/2023*)

**Versus**

Muhammad Tasleem & others ...Respondents  
(*in both petitions*)

For the Petitioners : Mr. Abdul Qadir Khan, ASC/ AOR  
(*via VL from Karachi, in both cases*)

For the Respondents : Mr. Shahzaib Akhtar Khan, ASC  
(*via VL from Karachi, in both cases*)

Date of Hearing : 24.07.2025

**ORDER**

**SHAKEEL AHMAD, J.-** The petitioners are aggrieved by the order dated 06.06.2023 ("***the impugned order***") of the High Court of Sindh, at Karachi ("***the High Court***"), whereby the Constitution Petitions instituted by the respondent were allowed by setting aside the judgments/orders of the lower *fora*, directing the petitioners-tenants to vacate the suit premises/shops and hand over its vacant possession to the respondent within sixty (60) days from the date of the order.

2. Briefly, the deceased father of the respondent was the landlord of the property in dispute. Upon his death, the respondent, being his son and one of the legal heirs, served a legal notice upon the petitioners-tenants, informing them of the demise of the original landlord and requiring them to attorn the tenancy and to pay rent, including arrears, to him and the other legal heirs. The service of the said notice was not disputed. During cross-examination, the petitioners-tenants admitted the death of the original landlord and further acknowledged that they had participated in his funeral ceremony. They also admitted that, after the death of the landlord, they did not pay rent to any of his legal heirs. It was further admitted that, despite a

demand made by the respondent after service of notice, rent was deliberately withheld on the ground that the respondent had other brothers and sisters. It is an admitted position that even after service of the legal notice dated 18.05.1987, the petitioners-tenants neither paid rent to any of the legal heirs nor deposited the same in their names. On the contrary, the petitioners-tenants voluntarily stated that they continued to deposit rent in the name of the deceased landlord, despite having full knowledge of his death. In view of the foregoing conduct, the respondent instituted eviction petitions against the petitioners-tenants on the ground of wilful default in the payment of monthly rent.

3. The petitioners-tenants took the plea that, since they were depositing rent in Court, no default could be attributed to them. It was contended that mere deposit of rent afforded them statutory protection against eviction, notwithstanding the fact that such deposit was made in the name of the deceased landlord.

4. Conversely, the learned counsel for the respondent contended that the petitioners-tenants, having admittedly received notice informing them of the death of the original landlord and the status of the respondent as successor landlord, deliberately refused to pay rent to him. Such conduct, it was argued, was contumacious and amounted to wilful default. It was, therefore, submitted that the High Court had rightly passed the eviction order against the petitioners-tenants.

5. Having considered the submissions of the learned counsel for the parties, we are of the view that the following question requires determination by this Court:

*Whether a tenant, who admits service of notice issued by the legal heirs of a deceased landlord, but continues to deposit rent in the name of the deceased landlord instead of paying the same to the legal heirs, commits wilful default so as to render himself liable to eviction?*

6. It is a settled principle of law that upon the death of a landlord, his legal heirs step into his shoes by operation of

law<sup>1</sup>. No fresh contract of tenancy or formal act of attornment is required. Attornment follows as a legal consequence of succession, and the tenant is bound to recognise the lawful heirs as landlords and to pay rent to them, particularly where notice in this regard has been duly served, and its receipt is admitted. In the instant case, the petitioners-tenants have admitted service of notice whereby the respondent asserted his status, along with that of the other legal heirs, as successor landlords, and demanded payment of rent. The plea of the petitioners-tenants that rent need not be paid to the respondent merely on the ground that he is one of several legal heirs and that other brothers and sisters exist is wholly untenable. It is well-settled by this Court in *Anwar Khan*<sup>2</sup> and *Khalique Ahmed*<sup>3</sup> that an ejectment application may be filed by one of the landlords alone, and it is not necessary for him to obtain written permission from other co-owners. The respondent, being one of the legal heirs and co-owners of the property, has *locus standi* to initiate eviction proceedings. The rationale behind this principle, as explained by *Muhammad Hanif*<sup>4</sup>, is that a co-sharer acts on behalf of and represents the interests of all co-owners in the property. By the same logic, the right to demand rent vests in each co-heir individually; a tenant cannot refuse to pay rent to a lawful co-heir on the ground that there are other heirs. Deposit of rent must be made in favour of the person legally entitled to receive it; a deposit in the name of a deceased person is nullity in the eyes of the law. Once a lawful demand for rent is made by a co-heir and the tenant wilfully fails to comply, the filing of ejectment proceedings becomes a natural and legal consequence of such default, as recognized by the above precedents. Consequently, the argument that rent could continue to be deposited in the name of the deceased landlord, despite knowledge of the lawful heirs, loses all legal force and cannot be countenanced.

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<sup>1</sup> Mst. Suban v. Allah Ditta & Others (2007 SCMR 635)

<sup>2</sup> Anwar Khan v. Abdul Manaf (2004 SCMR 126)

<sup>3</sup> Khalique Ahmed v. Abdul Ghani & another (PLD 1973 SC 214)

<sup>4</sup> Muhammad Haanif & another v. Muhammad Jamil Turk & others (2002 SCMR 429)

7. From the foregoing discussion, we are of the view that the High Court rightly held that the respondent and the other legal heirs of the deceased landlord became landlords by operation of law upon the death of their father. The petitioners-tenants admittedly received notice and had full knowledge of such succession, particularly as they themselves participated in the funeral procession. In these circumstances, and in light of acknowledgment of receipt of notice under Section 18 of the Sindh Rented Premises Ordinance, 1979, continued deposit of rent in the name of the deceased landlord does not constitute payment in the eye of law. Such conduct amounts to wilful default, and the tenants are, therefore, liable to eviction on the ground of default in payment of rent.

8. We find no illegality, irregularity or jurisdictional defect in the impugned order passed by the High Court, calling for interference. Consequently, both these petitions are dismissed and leave declined. No order as to costs.

**Announced in open Court at Islamabad on 9/01/2026.**

**Approved for reporting**

*Zia\*/Rameen LC*